

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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KENNIEL THOMAS,

Plaintiff,
-against-

THE CITY OF NEW YORK, POLICE OFFICER KION
GAYLE, SERGEANT MIGUEL VIVAS, NEW YORK
CITY POLICE DEPARTMENT JOHN DOE OFFICERS
1-5, NEW YORK CITY DEPARTMENT OF
CORRECTION JOHN DOE OFFICERS 1-10 AND NEW
YORK CITY DEPARTMENT OF CORRECTION JOHN
DOE MEDICAL PROVIDERS 1-10,

Defendants.

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TO THE ABOVE-NAMED DEFENDANT:

You are hereby summoned and required to serve upon Plaintiff's attorney an answer to the complaint in this action within 20 days after the service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
March 21, 2023

Index No.:

SUMMONS

Plaintiff designates BRONX
COUNTY as the place of trial.

The basis of venue is the place
that claims arose/CPLR 504(3)

The Law Firm of Andrew M. Stengel, P.C.
Attorneys for Plaintiff



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Index No.:

VERIFIED COMPLAINT

JURY TRIAL DEMAND

Plaintiff Kenniel Thomas his attorneys, The Law Firm of Andrew M. Stengel, P.C., 11
Broadway, Suite 715, New York, New York, 10004, alleges upon knowledge with respect to
himself, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff Kenniel Thomas seeks relief for
violations of rights secured by the Civil Rights Act of 1871, 42 U.S.C. § 1983; rights secured by
the First, Fourth, Eighth and Fourteenth Amendments to the U.S. Constitution; and rights secured
under the laws and constitution of the State of New York. Plaintiff seeks damages, compensatory
and exemplary, an award of costs and attorneys' fees, and such other and further relief as this Court
deems just and proper.

2. This civil rights action arises from the New York City Police Department's use of
excessive force against Thomas, and his subsequent false arrest, malicious prosecution and the
manufacture of evidence against him to cover up for their use of excessive force.

3. On or about May 3, 2022, at the entrance of the 69th Precinct in Brooklyn, New York, Police Officer Kion Gayle and Sergeant Miguel Vivas, shoved Thomas down several cement steps and onto the sidewalk, thereby injuring Thomas.

4. To attempt to cover up their assault of Thomas, Police Officer Kion Gayle and Sergeant Miguel Vivas manufactured evidence against Thomas and invented criminal charges, which were subsequently dismissed by the Kings County District Attorney.

5. While in the custody of the New York City Department of Correction in the Bronx, Thomas was repeatedly denied medical care for the injury caused by the police officers.

6. On the rare occasions that Thomas received medical care for his injury, his injury was not resolved.

PARTIES, JURISDICTION AND VENUE

7. At all relevant times, Plaintiff Kenniel Thomas ("Thomas") Plaintiff was a resident of New York City.

8. Defendant City Of New York ("City") is a municipal corporation within the State of New York.

9. Under § 431 of the New York City Charter, the City of New York established and maintains the New York City Police Department ("NYPD") a constituent department or agency.

10. At all relevant times, Defendant City employed the NYPD personnel involved in the acts underlying this lawsuit.

11. Defendants Police Officer Kion Gayle, Sergeant Miguel Vivas and NYPD John Doe Officers 1 to 5 were at all times relevant to this complaint, duly appointed and acting police officers employed by the NYPD.

12. Under § 621 of the New York City Charter, Defendant City established and maintains the Department of Correction (“DOC”) a constituent department or agency.

13. At all relevant times, Defendant City employed the DOC personnel involved in the acts underlying this lawsuit.

14. At all relevant times DOC operated 10 jail facilities in New York City, including eight on Rikers Island, for people held in its custody who are awaiting trial. DOC is charged with the care of all those held in its custody.

15. Defendants DOC John Doe Officers 1-10 and DOC John Doe Medical Providers 1-10 were at all times relevant to this complaint, duly appointed and acting correction officers employed by the DOC.

16. At all times relevant to this complaint, Defendants acted within the scope of their employment and under the color of state law.

17. This Court has jurisdiction over the subject matter of this action and the parties pursuant to CPLR 301.

18. This Court has jurisdiction over this action because the amount of damages Plaintiff seeks exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

19. Venue is proper in Bronx County pursuant to CPLR 504(3) because causes of action alleged herein arose in Bronx County.

20. A Notice of Claim was filed within 90 days of the occurrence alleged herein.

21. More than 30 days have elapsed since the Notice of Claim was served upon the Defendants and Defendants have neglected or refused to make any adjustment or payment thereof.

22. This action is commenced within one year and 90 days after the cause of action arose.

FACTUAL ALLEGATIONS

23. On or about May 3, 2022, Plaintiff was lawfully present inside the 69th Precinct of the New York City Police Department (“NYPD”) located in Brooklyn, New York.

24. Plaintiff’s stated that he wished to file a police report for lost identification.

25. Following Plaintiff’s request to file a police report, Defendants Police Officer Kion Gayle (“Defendant Gayle”) and/or Defendant Sergeant Miguel Vivas (“Defendant Vivas”) forced Plaintiff outside of the police precinct doors and onto the cement stairs leading to the sidewalk.

26. Defendant Gayle and Defendant Vivas pushed Plaintiff from the stairs onto the sidewalk thereby causing a physical injury to Plaintiff, including to his back, and extreme pain.

27. While Plaintiff was lying on the ground injured, Defendant NYPD John Doe Officer 1 turned on the engine of an NYPD SUV that Plaintiff was lying near, thereby causing Plaintiff to breathe noxious fumes.

28. Plaintiff was taken away in an ambulance due to his injuries and the acts of Defendant Gayle and Defendant Vivas.

29. To attempt to cover up their assault of Plaintiff, Defendant Gayle, arrested Plaintiff for invented criminal charges including Trespass, Trespass in the Third Degree and Disorderly Conduct.

30. Defendant Vivas, who was also responsible for assaulting Plaintiff, approved of Defendant Gayle’s arrest of Plaintiff.

31. The charges against Plaintiff were false and brought with malice.

32. On or about May 3, 2022, Plaintiff was arraigned in New York City Criminal Court, Kings County, on the false charges.

33. As a result of the false charges, Plaintiff was required to appear in Kings County Criminal Court for several court dates.

34. After Plaintiff was injured by Defendant Gayle and Defendant Vivas he sought medical treatment for his injuries.

35. On or about September 21, 2022, Plaintiff's prosecution terminated in his favor when the false charges against Plaintiff were dismissed on motion of the Kings County District Attorney.

36. Plaintiff injuries caused by Defendant Gayle and Defendant Vivas are believed to be permanent in nature.

37. On or about September 29, 2022, Plaintiff was committed to the custody of Defendant Department of Correction ("Defendant DOC").

38. New York City Administration Code § 9-108 (c) states that DOC "shall provide all housing units with access to sick call on weekdays, excluding holidays, and subject to the exclusions set forth in chapter 3 of title 40 of the Rules of the City of New York, or exclusions obtained through a variance pursuant to section 3-13 of such rules."

39. Rule of New York City (RCNY) 40 § 3-02 (c)(1) requires that "Sick-call shall be available at each facility to all inmates at a minimum of five days per week within 24 hours of a request or at the next regularly scheduled sick-call. Sick-call need not be held on City holidays or weekends."

40. New York City Administration Code § 9-108 (c) and 40 RCNY § 3-02 (c)(1) impose mandatory, nondiscretionary duties to provide access to sick call on weekdays, five days

per week (excluding holidays) or within 24 hours of a request or at the next regularly scheduled sick-call. DOC does not have the discretion to fail to perform this obligation or to perform it in a different manner or on a different schedule.

41. As set forth herein and upon information and belief, Defendant DOC refuses to comply with its nondiscretionary duty to provide individuals in custody with access to sick call in the manner and at the regular intervals specified in York City Administration Code § 9-108 (c) and 40 RCNY § 3-02 (c)(1).

42. Correction Law § 500-c (4) provides that the DOC commissioner “shall receive and safely keep in the county jail of his county each person lawfully committed to his custody,” which includes the duty to “provid[e] necessary medical care to inmates,” Bonacquist, McKinney’s Practice Commentaries, N.Y. Correction Law § 501 (2017); *see also id.* § 505 (2021) (“The chief administrative officer of a local correctional facility must ‘receive and safely keep’ all inmates committed to his custody. Generally, this requires that inmates be provided with necessary medical, dental, and mental health care.” (*quoting* Correction Law § 500-c (4))).

43. In furtherance of Correction Law § 500-c (4), Rule of New York 40 § 3-02 (c) (4) states that “[t]he Department of Correction shall provide sufficient security for inmate movement to and from health service areas.”

44. In furtherance of Correction Law § 500-c (4), Rules of New York 40 § 3-02 (b)(4) & (c)(2)(i) state that “[c]orrectional personnel shall never prohibit, delay, or cause to prohibit or delay an inmate’s access to care or appropriate treatment” or “an inmate’s access to medical or dental services.”

45. Correction Law § 500-c (4) and Rules of New York 40 §§ 3-02 (b)(4), (c)(2)(i), and (c)(4) impose mandatory, non-discretionary duties to provide sufficient security for movement of

incarcerated persons to and from health services areas and prohibits DOC from delaying or denying access to care. DOC does not have the discretion to fail to perform this obligation or to perform it in a different manner or on a different schedule.

46. While in the custody of Defendant DOC in the Bronx, Plaintiff repeatedly complained to Defendant DOC John Doe Officers 1-10 about his back injury and extreme pain as a result of the injury caused by Defendant Gayle and Defendant Vivas.

47. On the rare occasions that Plaintiff was allowed to receive medical treatment, Defendant DOC John Doe Medical Providers 1-10 failed to resolve Plaintiff's injury or to treat his extreme pain.

48. Due to the acts of Defendant DOC John Doe Officers 1-10 and Defendant DOC John Doe Medical Providers 1-10 Plaintiff has been left injured by the lack of medical care and he is in extreme pain.

CAUSES OF ACTION

AS AND FOR PLAINTIFF'S FIRST CAUSE OF ACTION: **(First Amendment Retaliation under 42 U.S.C. § 1983;** **Defendants Gayle and Vivas)**

49. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

50. Plaintiff stated his intention to report a stolen identification.

51. In retaliation for Plaintiff's speech, Defendant Gayle and Defendant Vivas prevented Plaintiff from filing a police report and committed assault and battery against Plaintiff.

52. Defendant Gayle and Defendant Vivas arrested Plaintiff for invented charges and manufactured evidence in an attempt to cover up their misconduct.

53. Defendant Gayle and Defendant Vivas arrested and detained Plaintiff without reason to believe that Plaintiff committed a crime.

54. Plaintiff's speech was noncommercial and was protected by the First and Fourteenth Amendments of the U.S. Constitution.

55. Plaintiff's speech did not violate any law.

56. Defendant Gayle's and Defendant Vivas's conduct and actions, including illegally assaulting, battering and falsely arresting Plaintiff, were motivated and/or substantially caused by Plaintiff's speech by virtue of his stated intention to file a police report for lost identification.

57. The conduct and actions of Defendant Gayle and Defendant Vivas were done intentionally, maliciously, with deliberate indifference, and/or with reckless disregard for the natural and probable consequences of their acts.

58. Defendant Gayle's and Defendant Vivas's conduct and actions were done without lawful justification or reason and caused a physical injury to Plaintiff.

59. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

60. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S SECOND CAUSE OF ACTION:

***(Assault and Battery Under New York State Law;
Defendants Gayle, Vivas and City of New York)***

61. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

62. Defendant Gayle and Defendant Vivas caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

63. Defendant Gayle and Defendant Vivas intentionally made bodily contact with Plaintiff without consent or justification.

64. The bodily contact was offensive.

65. Defendant Gayle and Defendant Vivas made bodily contact with Plaintiff without Plaintiff's privilege or consent.

66. That as a direct and proximate result of the assault and battery Plaintiff was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

67. The acts of Defendant Gayle and Defendant Vivas occurred while they were on duty, in uniform, and in and during the scope of their duties and functions as NYPD employees, and while they were acting as agents, officers, servants, and employees of Defendant. Defendant City, as employer of Defendant Gayle and Defendant Vivas, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

69. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S THIRD CAUSE OF ACTION:
(Excessive Force Under 42 U.S.C. § 1983; Defendants Gayle and Vivas)

70. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

71. Defendant Gayle and Defendant Vivas violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent or privilege.

72. Defendant Gayle and Defendant Vivas engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent or privilege.

73. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

74. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S FOURTH CAUSE OF ACTION:
(False Arrest and False Imprisonment Under New York State Law;
Defendants Gayle, Vivas and City of New York)

75. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

76. Defendant Gayle and Defendant Vivas intended to confine Plaintiff.

77. Defendant Gayle and Defendant Vivas confined Plaintiff.

78. Plaintiff was conscious of the confinement.

79. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without Plaintiff's consent, and without probable cause or reasonable suspicion.

80. The acts of Defendant Gayle and Defendant Vivas occurred while they were on duty, in uniform, and in and during the scope of their duties and functions as NYPD employees, and while they were acting as agents, officers, servants, and employees of Defendant City. Defendant City, as employer of Defendant Gayle and Defendant Vivas, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged herein.

82. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S FIFTH CAUSE OF ACTION:
(False Arrest and False Imprisonment Under 42 U.S.C. § 1983;
Defendants Gayle and Vivas)

83. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

84. Defendant Gayle and Defendant Vivas intended to confine Plaintiff.

85. Defendant Gayle and Defendant Vivas violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

86. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without Plaintiff's consent, and without probable cause or reasonable suspicion.

87. At all relevant times, Defendant Gayle and Defendant Vivas acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

88. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

89. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S SIXTH CAUSE OF ACTION:
(Malicious Prosecution Under New York State Law;
Defendants Gayle, Vivas and City of New York)

90. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

91. Defendant Gayle and Defendant Vivas initiated the prosecution against Plaintiff.

92. Defendant Gayle and Defendant Vivas lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

93. Defendant Gayle and Defendant Vivas acted with malice, which, in the absence of probable cause, may be inferred.

94. The prosecution was terminated in Plaintiff's favor, when the criminal charges were unconditionally dismissed and sealed.

95. Due to the intentional, willful and unlawful acts of Defendant Gayle and Defendant Vivas, Plaintiff suffered significant damages.

96. The acts of Defendant Gayle and Defendant Vivas occurred while they were on duty, in uniform, and in and during the scope of their duties and functions as NYPD employees, and while they were acting as agents, officers, servants, and employees of Defendant City. Defendant City, as employer of Defendant Gayle and Defendant Vivas, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

98. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S SEVENTH CAUSE OF ACTION:
(Malicious Prosecution Under 42 U.S.C. § 1983;
Defendants Gayle and Vivas)

99. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

100. Defendant Gayle and Defendant Vivas lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

101. Defendant Gayle and Defendant Vivas acted with malice, which, in the absence of probable cause, may be inferred.

102. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

103. Defendant Gayle and Defendant Vivas violated Plaintiff's Fourth and Fourteenth Amendment rights by causing Plaintiff to return to court and contest false allegations against him.

104. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

105. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S EIGHTH CAUSE OF ACTION:
(Denial of the Right to a Fair Trial Under New York State Law;
Defendants Gayle, Vivas and City of New York)

106. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

107. Defendant Gayle and Defendant Vivas were the investigating officials relating to Plaintiff's arrest.

108. Defendant Gayle and Defendant Vivas, acting in concert and aiding and abetting the other, manufactured evidence against Plaintiff.

109. Defendant Gayle and Defendant Vivas, acting in concert and aiding and abetting the other, created police reports with false information.

110. The false information contained in the police reports, created by D Defendant Gayle and Defendant Vivas were likely to influence a jury's decision.

111. The police reports were forwarded to prosecutors who relied on them to commence and continue criminal proceedings against Plaintiff.

112. Plaintiff suffered material harm as a result of the acts and omissions of Defendant Gayle and Defendant Vivas.

113. Plaintiff suffered a deprivation of life, liberty and property as a result of the acts and omissions of Defendant Gayle and Defendant Vivas.

114. The acts of Defendant Gayle and Defendant Vivas occurred while they were on duty, in uniform, and in and during the scope of their duties and functions as NYPD employees, and while they were acting as agents, officers, servants, and employees of Defendant City. Defendant City, as employer of Defendant Gayle and Defendant Vivas, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

116. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S NINTH CAUSE OF ACTION:
(Denial of the Right to a Fair Trial Under 42 U.S.C. § 1983;
Defendants Gayle, Vivas and City of New York)

117. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

118. Defendant Gayle and Defendant Vivas were the investigating officials relating to Plaintiff's arrest.

119. Defendant Gayle and Defendant Vivas, acting in concert and aiding and abetting the other, manufactured evidence against Plaintiff.

120. Defendant Gayle and Defendant Vivas acting in concert and aiding and abetting the other, created police reports with false information.

121. The false information contained in the police reports, created by Defendant Gayle and Defendant Vivas were likely to influence a jury's decision.

122. The police reports were forwarded to prosecutors who relied on them to commence and continue criminal proceedings against Plaintiff.

123. Plaintiff suffered material harm as a result of the acts and omissions of Defendant Gayle and Defendant Vivas.

124. Plaintiff suffered a deprivation of life, liberty and property as a result of the acts and omissions of Defendant Gayle and Defendant Vivas.

125. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

126. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S TENTH CAUSE OF ACTION:
(Negligent Hiring, Training, Retention and Supervision Under New York State Law;
Defendant City of New York)

127. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

128. By virtue of the foregoing, Defendant City Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or grossly negligent hiring, retention, and supervision of its agents, servants and/or NYPD employees with regard to their duties, including:

- a. the duty not to rely on false, misleading or unreliable testimony of official material statements;

b. the continuing obligation to correct false, inaccurate, incomplete or misleading evidence, and official material statements; and

c. the duty to appropriately discipline and/or dismiss employees who use excessive force or make perjured statements or intentionally make false material official statements attempting to cover up the use of excessive force.

128. Policymaking and supervisory officials for the NYPD and Defendant City had legal and constitutional obligations to prevent their employees from violating the above duties.

129. Those policymakers and officials had knowledge and notice that adequate policies regarding hiring, retention and supervision were necessary with respect to rank-and-file police officers and their supervisors, and that failing to implement such policies would result in the violation of the constitutional rights of individuals investigated and arrested by the NYPD, based upon, among other things, the facts set forth herein.

129. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

130. By reason of the foregoing, Defendant City is liable for the damages set forth above.

AS AND FOR PLAINTIFF'S ELEVENTH CAUSE OF ACTION:
(Monell Liability Under 42 U.S.C. § 1983; Defendant City of New York)

131. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

132. The foregoing violations of Plaintiff's federal constitutional rights and injuries were further directly, foreseeably, proximately, and substantially caused by conduct, chargeable to the Defendant City amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities to

cover up for the use of excessive force.

133. Prior to Plaintiff's arrest, policymaking officials at the NYPD, with deliberate indifference to the constitutional rights of individuals suspected or accused of criminal activity, to the risk of arresting, prosecuting and convicting innocent people who are victims of excessive force, and to the rights of all criminal suspects and defendants to due process and a fair trial, implemented plainly inadequate policies, procedures, regulations, practices, customs, training, supervision, and discipline concerning the investigation, prosecution and dismissal of NYPD employees who use excessive force on an arrestee and then commit perjury or make intentionally material false official statements in connection with an arrest and prosecution.

134. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs (including the failure to properly instruct, train, supervise and/or discipline employees with regard thereto) were implemented or tolerated by policymaking officials for Defendant City, including but not limited to, the NYPD Commissioner, who knew (or should have known):

a. To a moral certainty that such policies, procedures, regulations, practices and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases;

b. That such issues either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations as well as the incentives that police employees have to make the wrong choice; and

c. That the wrong choice by such employees concerning such issues will

frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

135. The NYPD's policy, custom and practice of approval and/or ratification of, toleration and/or acquiescence in, or deliberate indifference to violations of its constitutional obligations foreseeably encouraged such violations to continue and was a substantial cause of the violations of Plaintiff's constitutional rights beginning with the use of excessive force against him by the NYPD, his false arrest and the initiation of a criminal prosecution against him without probable cause and continuing throughout his criminal proceedings.

136. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraph based upon, and the need to investigate and supervise officers by, among other circumstances including:

a. Since at least 1984, Defendant City and the NYPD were on notice of the inadequacy of its training, supervision, and discipline policies, and that police officers joining the force were disproportionately involved in the same type of misconduct and abuse as in Plaintiff's case as described in "Mayor's Advisory Committee on Police Management and Personnel Policy, Final Report," dated February 24, 1987.

b. In 1994, the Mollen Commission detailed the NYPD's policies and customs of, deliberate indifference to police misconduct, including the coercion of false or misleading statements, fabrication of evidence, and withholding information favorable to the defense in "The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department," dated July 7, 1994.

c. In 1996, the Commission to Combat Police Corruption ("Commission"),

which was established by the Mayor's Executive Order, published a report "The New York City Police Department's 'Disciplinary System: How the Department Disciplines Its Members Who Make False Statements,'" dated December 12, 1996. The Commission's 1996 report encouraged a change to NYPD policy that would require termination for perjury and official false material statements.

d. In 2007, the NYPD modified its false statement policy as set forth in Patrol Guide § 203-08: "The intentional making of a false statement is prohibited, and will be subject to disciplinary action, up to and including dismissal. Intentionally making a false official statement regarding a material matter will result in dismissal from the Department, absent exceptional circumstances."

e. In 2015, the Commission published its Seventeenth Annual report based on its review of IAB investigations and disciplinary cases in 2014. The Commission found that the NYPD rarely brought charges under the Patrol Guide's false statement policy. The Commission reviewed 28 disciplinary cases for false official statements, but zero cases resulted in termination.

f. In 2017, the Commission published its Eighteenth Annual report based on its review of IAB investigations and disciplinary cases in 2015 and most of 2016. The report states: "In numerous Annual Reports, the Commission has criticized the Department for charging officers with making false official statements in far fewer instances than facts and circumstances seem to warrant. Often, the circumstances in reviewed cases leave little doubt that the subject officer made statements that were false, official, more elaborate than 'mere denials' and, by any reasonable estimation, both intentional and material. Yet, the Department appears to routinely employ other Patrol Guide sections to address the

misconduct, bypassing the mandatory termination penalty in the process.” The Commission found that in 88% of cases where an NYPD employee made a false statement, the NYPD charged misconduct under a section that did not require dismissal from the NYPD. The Commission also found that in 11 cases where an NYPD employee committed perjury, only 6 were dismissed (or retired).

g. In 2019, the Commission published its Ninetieth Annual report based on its review of IAB investigations and disciplinary cases in 2017 and 2018. The report stated that in 85% of cases where an NYPD employee made a false statement, the NYPD charged misconduct under a section that did not require dismissal from the NYPD. Of 47 NYPD employees who were charged with an alternative Patrol Guide section, only 5 were dismissed from the NYPD.

h. On March 5, 2018, BuzzFeed published “Secret NYPD Files: Officers Who Lie And Brutally Beat People Can Keep Their Jobs.” The reporting established that from 2011 to 2015, “at least 319 New York Police Department employees who committed offenses serious enough to merit firing were allowed to keep their jobs.” At least 50 of the police officers “were found guilty of misleading or making ‘inaccurate’ statements in official records, to grand juries, district attorneys, or internal affairs investigators — and yet were kept on the force.”

i. In April 2022, LatinoJustice PRLDEF published “Shielded From Accountability: How NYPD Officers Get Away with Lying to the Civilian Compliant Review Board. The report analyzed 144 CCRB cases from 2010 to 202 and concluded that “the NYPD has utterly failed to take lying by officers seriously, refusing to discipline officers in the face of incontrovertible evidence that they lied.”

i. In 2015, Police Officer Latoya Paradise of Transit Bureau District 13 used excessive force by slamming a subway emergency door onto a teenage and then she lied about doing so. Police Officer Paradise made intentional false official statements about material matters, yet she was not dismissed from the NYPD. In 2020, Police Officer Paradise was promoted to Sergeant.

ii. In 2015, Police Officer Mandeep Singh of the 41st Precinct lied under oath about hitting a woman in the head with a baton numerous times. Police Singh previously used excessive force by hitting a person with his firearm. Police Officer Singh did not face any consequences for his perjury and/or his intentionally making false official statements about material matters or the use of excessive force.

iii. In 2016, Segreant Mark Sinatra of the Narcotic Borough Queens used excessive force by punching an arrestee in the face and lied about his use of excessive force. Segreant Sinatra lied did not face any consequences for his perjury and/or his intentionally making false official statements about material matters or the use of excessive force.

iv. In 2016, Sergeant Mackenson Nelson of the 79th Precinct used excessive force when he broke a man's nose inside of a holding cell. Sergeant Nelson lied about the interaction with the man and the use of excessive force. Sergeant Nelson was not dismissed from despite his use of excessive force and intentionally making false official statements about material matters.

v. In 2016, Police Officer Kenneth Sepulveda of Queens Patrol Borough lied about using excessive force that caused a head injury to a girl. Despite

his intentionally making false official statements about material matters or the use of excessive force Police Officer Sepulveda was not dismissed from the NYPD.

vi. In 2016, Sergeant Anthony Egan of the 67th Precinct used excessive force by hitting people with a baton. Despite lying about the use of excessive force, Sergeant Egan did not face any consequences for his intentionally making false official statements about material matters or for the use of excessive force.

vii. In 2017, Police Officer Scott Pariona of the 40th Precinct was in an elevator where he witnessed excessive force and a chokehold against a man. Police Officer Parion lied about all the circumstances of the assault. Police Officer Pariona did not face any consequences for his intentionally making false official statements about material matters or the use of excessive force.

viii. In 2018, Police Officers Christopher Cianicullo and Vasyl Filchukov of the 33rd Precinct committed excessive force against an arrestee and his young son, by taking the man to the ground when the man's son was on his father's shoulders. Both police officers lied about the use of excessive force. Neither police officer was disciplined for the use of excessive force or their intentionally making false official statements about material matters. In December 2018 Police Officer Filchukov was promoted to sergeant.

ix. In 2018, Police Officer Arland Belande of the 5th Precinct lied about using excessive force against an arrestee in part due to a chokehold. Police Officer Belande lied about the issue of excessive force. Police Officer Belande did not face any consequences for his intentionally making false official statements his intentionally making false official statements about material matters or the use of

excessive force.

x. In 2019, Police Officer Timothy Burke of the 52nd Precinct lied about hitting an arrestee in the face with a shoe. Police Burke did not face any consequences for his intentionally making false official statements his intentionally making false official statements about material matters or the use of excessive force.

137. The NYPD's policy, custom and practice of approval and/or ratification of, toleration and/or acquiescence in, or deliberate indifference to violations of its constitutional obligations foreseeably encouraged such violations to continue and was a substantial cause of the violations of Plaintiff's constitutional rights beginning with the use of excessive force against him, his false arrest and the initiation of a criminal prosecution against him without probable cause, manufacture of evidence against him and continuing throughout his criminal prosecution.

138. Under the principles of municipal liability for federal civil rights violations, the City's NYPD Commissioner (or her/his authorized delegates), has final responsibility for training, instructing, supervising, and disciplining police personnel with respect to the investigation and prosecution of criminal matters, including constitutional requirements governing the use of excessive force, the initiation of criminal prosecutions, the use of only truthful evidence giving perjured testimony and making intentionally false material statements.

139. The NYPD Commissioner, personally and/or through her/his authorized delegates, at all relevant times had final authority and constitutes a policymaker for whom the Defendant City is liable, with respect to compliance by NYPD employees with the above-mentioned constitutional requirements.

140. During all times material to this Complaint, the Police Commissioner owed a duty

to the public at large and to Plaintiff, which she/he knowingly and intentionally breached, or to which she/he was deliberately indifferent, to implement policies, procedures, customs, practices, training, supervision and discipline sufficient to prevent or deter conduct by his subordinates violating the aforementioned constitutional rights of criminal suspects.

141. The aforesaid policies, procedures, regulations, practices and/or customs of the Defendant City and the NYPD were collectively and individually a substantial factor in bringing about the aforesaid violations by Defendant Gayle and Defendant Vivas of Plaintiff's rights under the U.S. Constitution and laws of the United States.

142. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

143. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S TWELFTH CAUSE OF ACTION:
(Monell Liability Under 42 U.S.C. § 1983; Defendant City of New York)

144. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

145. For decades, through reports and civil litigation, the DOC has been aware of the routine, dangerous, and unconstitutional behavior by staff at individual facilities in the large, multi-jail New York City Department of Correction.

146. Most recently on October 4, 2021, public defender agencies in New York City filed for a petition for mandamus relief to compel DOC to provide medical care to people housed on Rikers Island. *Matter of Joseph Agnew, et al. v. NYC Dept. of Correction*, Index No. 813431/2021E (Sup. Ct. Bronx County). The petition begins, "New York City's jails are in a full-blown humanitarian crisis. Every day, thousands of people confined in New York City's Department of Correction (DOC or Department) facilities are unable to access medical care, which is critical to

their health and safety.”

147. On December 3, 2021, the Court found that DOC failed to comply with its duty to provide people in custody with access to medical care in violation of law and ordered DOC to immediately comply with its legal duties to provide medical services to all persons in NYC jails. *Matter of Joseph Agnew, et al v. NYC Dept. of Correction*, Sup. Ct. Bronx County, Dec. 3, 2021, Taylor , R., Index No. 813431/2021E.

148. On December 19, 2022, Petitioners filed a motion to request the Court hold DOC in contempt for its past and ongoing failure to provide people incarcerated on Rikers Island access to medical care and award a \$250 fine for each missed medical appointment from February to October 2022, totaling over \$3.08 million. *Matter of Joseph Agnew, et al v. NYC Dept. of Correction*, Sup. Ct. Bronx County, Dec. 3, 2021, Taylor , R., Index No. 813431/2021E.

149. Prior to the litigation in *Matter of Agnew*, the problems with Rikers Island were so great that leaders from the state courts and the speak of the New Yorl City Council argued that the entire complet should be

150. The problems at Rikers Island are of such a magnitude that in early 2017, Defendant City announced it intends to shut down the whole jail complex. See A Roadmap to Closing Rikers, <https://rikers.cityofnewyork.us/nyc-borough-based-jails>.

151. Through DOC’s reporting system, Defendant DOC John Doe Officers 1-10 and Defendant DOC John Doe Medical providers 1-10 who were in supervisory positions were aware of the pattern of a large number of incidents involving the deliberate indifference to the medical needs of detainees resulting in serious injuries or death, and have failed to take sufficient steps to curb these abuses.

152. Defendant City’s constructive acquiescence to the pattern of deliberate indifference

to the medical needs of detainees in DOC custody is illustrated by the needless death of incarcerated persons on Rikers Island reported as reported in the news and in litigation over the past decade.

- a. In 2013, Carlos Mercado died while on Rikers Island while in DOC custody when correction officers ignored his severe diabetic conditions stepped over him after he collapsed in a holding pen, as depicted in surveillance video published by the New York Times. <https://www.nytimes.com/2015/09/02/nyregion/an-unanswered-call-for-help-at-rikers-island.html>.
- b. Also in 2013, Bradley Ballard died while on Rikers Island while in DOC after his mental illness was ignored and he was left in a cell where he was denied medication and covered in feces. <https://www.nytimes.com/2014/09/11/nyregion/family-of-mentally-ill-rikers-inmate-sues-new-york-city-over-his-death.html>.
- c. In 2014, Victor Woods died while on Rikers Island while in DOC after correction officers ignored his pleas for help and he died due to internal bleeding. <https://www.reuters.com/article/us-usa-new-york-rikers/former-rikers-correction-officer-charged-after-inmates-seizure-death-idUSKCN0RP2DW20150925>.
- d. In 2016, Eugene Castelle died while in DOC custody on Rikers Island following multiple requests made to DOC Officers to receive medical treatment for a heart condition. See *Tirado v. City of New York, et al.*, 19-cv-10377 (S.D.N.Y.)

153. At all times material to this complaint, Defendant City was deliberately indifferent to the medical needs of the persons held in DOC custody, which was a direct and proximate cause of the unconstitutional conduct against Plaintiff alleged herein.

154. At all times material to this complaint, Defendant City had a custom and practice of not providing emergency care to inmates housed at Rikers Island during which was a direct and proximate cause of the unconstitutional conduct against Plaintiff alleged herein.

155. At all times material to this complaint, Defendant City failed to properly train, screen, supervise, or discipline employees, and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline the individual defendants, despite notice that the individual defendants were in need of training, supervision, and discipline.

156. At all times material to this complaint, Defendant City failed to put adequate policies in place concerning the treatment of persons while in DOC custody and failed to properly train officers and employees concerning such assessment and treatment.

157. Defendant City was aware of the pattern of inadequate medical care for inmates housed on Rikers Island in DOC custody, and failed to take sufficient measures to investigate, train and discipline, and to end the unconstitutional conditions there.

158. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the U.S. Constitution, including its Eighth Amendment and the Due Process Clause of the Fourteenth Amendment.

159. As a result of the aforementioned conduct of the Defendant City, Defendants DOC Officers 1-10 and Defendants DOC John Doe Medical Providers, Plaintiff's constitutional rights were violated, resulting in extreme pain and physical injury.

160. As a result of the foregoing, Plaintiff suffered conscious pain and suffering, injury, and economic loss.

161. By reason of the foregoing, Defendants are liable for the damages set forth above.

DEMAND FOR JURY TRIAL

Plaintiff herein demands a trial by jury for all issues in this action.

REQUESTED RELIEF

WHEREFORE, Plaintiff respectfully prays for a Judgment against Defendant as follows:

- i. Awarding Plaintiff compensatory damages for mental, emotional, psychological, and physical injuries, distress, pain and suffering, and for injury in an amount to be determined at trial but in any case, no less than stated above;
- ii. Awarding Plaintiff punitive damages to be determined at trial;
- iii. Awarding Plaintiff reasonable attorney fees, litigation expenses and costs incurred in bringing this action; and
- iv. Such other relief that this court deems appropriate and just under the circumstances.

Dated: New York, New York
March 21, 2023

Respectfully submitted,

The Law Firm of Andrew M. Stengel, P.C.
Attorneys for Plaintiff

By: _____



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VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

ANDREW M. STENGEL, an attorney duly admitted to practice in the courts of the State of New York makes the following statement under penalty of perjury pursuant to CPLR 2106:

I am the attorney of record for the Plaintiff in the matter within. I have read the foregoing Verified Complaint and I know the contents thereof; that that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true. The grounds of for my belief are from information received from the Plaintiff.

This verification is made by be me rather than by Plaintiff because the Plaintiff is not presently within New York County, the County in which I maintain my office; and the Plaintiff does not reside within New York County.

Dated: New York, New York
March 21, 2023

A handwritten signature in blue ink, appearing to read "AM Stengel", is written over a horizontal line.

Andrew M. Stengel, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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KENNIEL THOMAS,

Index No.

Plaintiff,
-against-

THE CITY OF NEW YORK, POLICE OFFICER KION
GAYLE, SERGEANT MIGUEL VIVAS, NEW YORK
CITY POLICE DEPARTMENT JOHN DOE OFFICERS
1-5, NEW YORK CITY DEPARTMENT OF
CORRECTION JOHN DOE OFFICERS 1-10 AND
NEW YORK CITY DEPARTMENT OF CORRECTION
JOHN DOE MEDICAL PROVIDERS 1-10,

Defendants.

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SUMMONS AND COMPLAINT

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Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 21, 2023



Andrew M. Stengel

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